

HOUSE No. 4675

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 3, 2025.

The committee on the Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1934) of Edward R. Philips and others for legislation to further regulate animal cruelty, reports recommending that the accompanying bill (House, No. 4675) ought to pass [Representatives Berthiaume of Spencer and Sullivan-Almeida of Abington dissent].

For the committee,

MICHAEL S. DAY.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act preventing animal cruelty.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1.

2 Chapter 140 of the General Laws, as appearing in the 2022 Official Edition, is hereby
3 amended by inserting after section 151C the following section:-

4 Section 151D. (a) For the purposes of this section the following terms shall have the
5 following meanings:

6 “Animal Neglect”, the failure of a person having the charge or custody of an animal kept
7 as a companion or pet to provide the minimum standard of care for the animal, including, but not
8 limited to: (i) failing to provide adequate food, water, shelter or veterinary care; (ii) keeping the
9 animal in an unsanitary environment; or (iii) otherwise permitting the animal’s unnecessary
10 suffering.

“Enforcing Authority”, any: law enforcement officer, animal control officer certified under section 151, special state police officer appointed by the colonel of the state police under section 57 of chapter 22C, sheriff or deputy sheriff.

(b) An enforcing authority may petition with district court with jurisdiction over an animal seeking: an order: (i) requiring the person having charge or custody of the animal provide certain care; the; or (ii) authorizing the removal of the animal to the custody of the enforcing authority.

(c) The court shall, within 10 calendar days of receiving the petition, hold a hearing to determine animal neglect and, if neglect is present, whether the person charged with the animal’s care and custody is able to properly care for the animal. In making its determination of whether

the person charged with the animal’s care and custody can properly care for an animal the court may consider evidence of past investigations relating to the person’s care and treatment of animals. The petitioning enforcement authority shall serve notice to the person who had custody or control over the animal at least 3 days prior to the hearing.

(d) Upon a judgment of animal neglect, the court may order if in the animal’s best interest: (1) the forfeiture of the animal to the custody of the enforcing authority or other person or entity if appropriate; (2) the humane euthanasia of the animal; or (3) the person having charge or custody of the animal, if found able to properly care for the animal, provide certain care of the neglected animal. The Court may further order in written findings the removal of other animals in the person’s care or custody and prohibit the person from assuming the care or custody of any animal.